

**SYNTHETIC COUNTERFACTUAL APPELLATE BRANCH — NEVER
OCCURRED ON THE ACTUAL DOCKET — ALL FACTS AND
IDENTIFIERS ARE FICTIONAL**

United States Court of Appeals for the Fourth Circuit

Piedmont Booksellers Guild v. City of Norvale

No. SYN-CA4-26-CV-4103-CF-NEVER-OCCURRED

Post-Stay Mandate

Issued August 5, 2026

This Court's June 18, 2026 judgment is transmitted as its mandate. The judgment affirms the determination that the Piedmont Booksellers Guild was entitled to preliminary protection under the evidentiary record then before the courts. It remands only for entry of a replacement injunction that describes the restrained conduct in reasonably specific terms and for an express, supported exercise of discretion concerning security. The Court denied the separate request to eliminate interim protection while those corrections are made.

The appeal arose under 28 U.S.C. § 1292(a)(1). The underlying constitutional claims have not proceeded to final judgment, and this mandate does not direct a permanent remedy. Consistent with the judgment, the January 23 injunction continues until the district court enters the superseding order. The City retains authority over neutral requirements tied to reservation priority, capacity, emergency routes, traffic, sanitation, physical arrangement, competing uses, and material operational changes.

The appellate judgment directs that each side bear its own costs. A certified copy of that judgment and a copy of the June 18 opinion accompany this mandate.

Issuance follows the conclusion of a mandate stay granted on July 6 under Federal Rule of Appellate Procedure 41(d). That order withheld the mandate through August 5 while the City considered Supreme Court review. The City reported no filed petition or extension, and the panel entered an order today dissolving the stay and directing immediate release. Because the prior motion was granted and the stay later dissolved, no additional seven-day interval based on denial applies.

This mandate is effective on issuance under Rule 41(c). The United States District Court for the District of South Carolina may now carry out the narrow Rule 65(c) and (d) instructions, manage the pending claims, and consider a properly supported request arising from changed conditions. The district court may not treat the remand as an appellate decision on permanent liability or as authority to leave the operative restraints undefined.

The clerk transmits the certified materials to the district clerk for filing in Case No. SYN-DSC-26-CV-0107 and gives electronic notice to counsel for both parties. The mandate concludes the Court's present exercise of jurisdiction over this interlocutory appeal, subject to authority otherwise provided by law. Issued under the seal of the Court on August 5, 2026.